

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION FOR MODIFICATION OF ONE SCHEDULING DEADLINE

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”), and Respondent CMA CGM S.A. (“Respondent” or “CMA CGM” and, collectively with PKDC, the “Parties”), by their respective undersigned counsel, hereby submit this Joint Motion for Modification of Three Scheduling Deadlines (“Motion”) to allow some additional time while not impacting the close of discovery.

I. Background

Following entry of the original Scheduling Order in this matter, the Parties have been actively engaged in discovery. However, due to the complexity of the matter and the volume of discovery necessary, the Parties have sought several previous extensions. The last extension was granted on November 18, 2025. The November 18 Order Granting In Part Joint Motion to Amend Schedule requires the Parties to exchange expert reports on January 5, 2026, rebuttal reports on January 16, 2026 and complete depositions of fact witnesses on or before January 16, 2026. The Parties seek an extension to extend these three deadlines to January 19, 2026 (expert reports), January 26, 2026 (rebuttal reports) and February 2, 2026 (fact depositions), which is the current deadline for completion of all discovery.

The Parties continue to engage in discovery. The Parties have substantially completed the

responses to their respective initial discovery requests. Respondent served its second Set of Interrogatories, to which the Complainant has responded and Complainant served its Second Set of Interrogatories and Second Request for Production of Documents on October 10, 2025, which remains pending. Respondent's response to Complainant's second round of discovery has been delayed by the death of the father of lead counsel for Respondent in late October. In early December, the mother of lead counsel for Complainant passed away unexpectedly. These family matters have understandably occupied time and attention that would have otherwise been devoted to this matter.

Nonetheless, the Parties are committed to completing discovery by the deadline of February 2, 2026. They merely request that they be given approximately two additional weeks to complete expert reports and the depositions of fact witnesses.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance, particularly since the extension of a single deadline will not impact the overall schedule.

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. § 502.141(g)) which is sufficient time for many disputes. However, as explained in earlier motions, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery spanning multiple years. Given the breadth and complexity of the issues, extensive electronic document collection and production have been required, which is itself time-consuming and technically complex.

The Parties note that in complex matters such as the instant case, policy considerations

favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent “favors the agency making its decision based on the most complete record available”).

Indeed, the FMC has recently allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

The requested extension does not impact the overall schedule of the proceeding, and granting the extension would be consistent with past Commission practice. Moreover, the family issues described above and the difficulty of scheduling and conducting depositions (some of which involve witnesses based outside of the United States) during the holiday season constitute good cause for granting the requested extension.

WHEREFORE, the Parties jointly pray that this joint Motion be granted and that the

November 18, 2025 Amended Scheduling Order be amended as requested.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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